



DECISION

Complaint No. : POS/4150/2021/HYD/167

Name and address of the complainant : Mr. Zulfiqar Ali s/o. Rab Dino Ujjan,
R/o. Abdullah Garden, Qasimabad,
Hyderabad.

Name of the Agency Complained against : Chief Municipal Officer,
Municipal Committee, Khairpur Mirs.

Name & Designation of Investigating Officer : Syed Muhammad Sajjad Hyder, Regional Director,
Regional Office, Hyderabad.

Vetted by : **Muhammad Naseer Jamali, Advisor-N**

Subject : COMPLAINT REGARDING NON-SANCTION OF PENSION
TO THE COMPLAINANT ON THE BASIS OF LAST PAY
SCALE/DRAWN

Complaint

Mr. Zulfiqar Ali filed a complaint dated 26.07.2021 wherein he stated that he was working as Panchayat Clerk at Municipal Committee, Khairpur and got retirement on completion of 25 years service on 01.01.2017. The Finance Department had upgraded the post of Panchayat Clerk from BPS-05 to BPS-11 vide circular dated 04.08.2016. His pay was fixed in BPS-11 in pursuance to the circular of FD but his service dues on retirement have been paid for BPS-05. He was deprived of getting due pension on retirement in BPS-11 (The SRO dated 04.08.2016 has been seen and there is no mention of upgradation of the post of Panchayat Clerk. Being aggrieved, he solicited intervention of this Institution.

Proceedings

2. The complaint was admitted for investigation u/s 10 (3) of the Establishment of the office of Ombudsman for the Province of Sindh Act, 1991 (amended up to date) subject to submission of mandatory documents and by condoning the delay.
3. This office issued a notice vide letter dated 14.09.2021 to the Chief Municipal Officer, Municipal Committee, Khairpur Mirs for report, who in response informed vide letter dated 27.09.2021 that the complainant was working as Panchayat Clerk in BPS-05. However, his post was upgraded in BPS-11 in pursuance to Finance Department's Notification No.FD (SR-IV) 2-35/2014 dated 04.08.2016 and pay of Junior Clerks and Panchayat Clerks were fixed in upgraded basic pay scales. On retirement of the complainant, his pension papers were prepared on the basis of "Last Pay Drawn" in BPS-11 and forwarded to the Directorate of Local Fund Audit, Karachi for verification but same were returned back vide letter dated 08.12.2021 with the observations that the post of Panchayat Clerk was never upgraded by Government of Sindh. The Director, Local Fund Audit Karachi advised for preparation of pension papers of the complainant as of BPS-05.

(2)

4. This office continued correspondence with different tiers of the agency and hearings also held. This office issued a notice vide letter dated 01.06.2022 to the Additional Secretary (SR), Finance Department for advice, who in response informed vide letter dated 23.06.2022 that the benefit of upgradation dated 04.03.2016 is applicable to the designation/nomenclature posts as mentioned in the said policy letter. In pursuance to the advice tendered by Finance Department, the Municipal Committee Khairpur reverted 15 Panchayat Clerks from BPS-11 to BPS-05 vide office order dated 26.09.2025.

Findings

5. The post of Panchayat Clerk was not upgraded vide F.D's Notification dated 04.08.2016, therefore, the complainant was not eligible for payment of service dues of BPS-11.

Decision

6. In view of the above and in exercise of powers vested in me under section 11 of Establishment of the office of Ombudsman for the Province of Sindh Act, 1991 (amended upto date), the complaint is disposed of as rejected.

Given under my hand and seal of the office



Sd /-
(MUHAMMAD SOHAIL RAJPUT)
Sitara-e-Imtiaz, PAS
Ombudsman Sindh

Karachi, dated 03rd December, 2025